

Court No. - 29

Case :- WRIT - C No. - 26180 of 2019

Petitioner :- Raj Singh

Respondent :- Collector District Magistrate And 2 Others

Counsel for Petitioner :- Santosh Kumar Singh

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and Sri Awadhesh Kumar Saxena, learned counsel for respondent no. 3.

The petitioner has filed this petition for quashing of the recovery citation dated 16.7.2019 whereby a sum of Rs.1,48,305/- and others are being sought to be recovered from the petitioner as electricity dues.

The submission of the learned counsel for the petitioner is that the petitioner is ready and willing to make the aforesaid payment provided instalments are fixed.

The power to fix instalments to pay the electricity dues vest with the Executive Engineer concerned under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005.

In view of the above, we **dispose off** the writ petitioner with liberty to the petitioner to approach the Executive Engineer within a period of two weeks from today.

In case, petitioner so approaches, the Executive Engineer will consider the matter and do the needful in accordance with law most expeditiously.

Order Date :- 26.8.2019

Ishan